

[13 & 14 GEO. 5.]

*Wakefield
Corporation Act, 1923.*

[Ch. xciii.]



CHAPTER xciii.

An Act to confer further powers upon the mayor
aldermen and citizens of the city of Wakefield
with regard to their water undertaking and to
provide for the consolidation of rates and for
other purposes. A.D. 1923. ,
—
[2nd August 1923.]

WHEREAS the city of Wakefield (in this Act called
“ the city ”) is under the local government of the
mayor aldermen and citizens of the city (in this Act
called “ the Corporation ”) :

And whereas the Corporation are the owners of the
water undertaking of the city and supply water within
the city and neighbourhood :

And whereas it is expedient to confer upon the
Corporation the further powers with regard to their
water undertaking contained in this Act :

And whereas it is expedient to provide for the
consolidation of the rates levied in the area of the city :

And whereas it is expedient that the other provisions
contained in this Act be enacted :

And whereas the purposes of this Act cannot be
effected without the authority of Parliament :

And whereas in relation to the promotion of the
Bill for this Act the requirements of the Borough Funds
Acts 1872 and 1903 have been observed :

May it therefore please Your Majesty that it may
be enacted and be it enacted by the King's most
Excellent Majesty by and with the advice and consent

A.D. 1923. of the Lords Spiritual and Temporal and Commons in
— this present Parliament assembled and by the authority
of the same as follows :—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Wakefield Corpora-
tion Act 1923.

Division of Act into Parts. 2. This Act is divided into Parts as follows :

Part I.—Preliminary.

Part II.—Water supply.

Part III.—Rating provisions.

Part IV.—Financial and miscellaneous provi-
sions.

Incorporation of Acts. 3. The following Acts (so far as the same are applic-
able for the purposes and are not inconsistent with the
provisions of this Act) are hereby incorporated with this
Act (namely) :—

(1) The Waterworks Clauses Act 1847 except—

(a) the words “ with the consent in writing of
“ the owner or reputed owner of any such
“ house or of the agent of such owner ” in
section 44 ;

(b) sections 75 to 82 (with respect to the amount of
profit to be received by the undertakers when
the waterworks are carried on for their
benefit); and

(c) section 83 (with respect to the yearly receipt
and expenditure of the undertakers); and

(2) The Waterworks Clauses Act 1863.

Interpreta- 4.—(1) In this Act the several words and expressions
tion. to which meanings are assigned by the Acts wholly or
partially incorporated herewith or by the Public Health
Acts have the same respective meanings unless there be
something in the subject or context repugnant to such
construction.

(2) In this Act unless the subject or context otherwise requires— A.D. 1923.

“The Corporation” means the mayor aldermen and citizens of the city of Wakefield;

“The city” means the city of Wakefield;

“The council” means the council of the city;

“The town clerk” means the town clerk of the city;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the city;

“The water limits” means the limits within which the Corporation are for the time being authorised to supply water;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction.

(3) In the construction of the provisions of the Waterworks Clauses Acts 1847 and 1863 incorporated with this Act the expressions “the promoters of the undertaking” and “the undertakers” mean respectively the Corporation.

PART II.

WATER SUPPLY.

5. The Corporation may grant to the owners of all dwelling-houses or parts of dwelling-houses within the water limits to whom section 72 (Owners of houses not exceeding 10*l.* rent to be liable to water rates) of the Waterworks Clauses Act 1847 relates a deduction or abatement not exceeding ten per centum upon the gross amount of the water rates payable in respect of such dwelling-houses on payment thereof in advance according to the provisions of the Wakefield Corporation Waterworks Act 1880 and the Corporation may if they think fit require the owners of such dwelling-houses to pay the water rates for the supply of water in respect thereof whether such dwelling-houses shall be occupied or unoccupied but in such case the Corporation shall grant

Abatement to owners of dwelling-houses liable for payment of water rates.

A.D. 1923. — to such owners the deduction or abatement hereinbefore mentioned For the purposes of this section the person for the time being receiving the rack rent of any dwelling-house on his own account or as agent receiver or trustee for any person interested or who would receive the same if the house were let at a rack rent shall be deemed the owner of the dwelling-house.

Local
authorities'
guarantee.

6.—(1) The council of any urban or rural district situate wholly or partly within the water limits may give and enter into any guarantee or contract for securing payment to the Corporation of such periodical or other sum or sums of money at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Corporation for the purpose of or with respect to the providing or laying down by the Corporation of any main or pipe or works for the supply within any part of such district which is within the water limits.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Corporation under this section :

Provided that any money paid by a rural district council under the provisions of this section shall be deemed to be special expenses within the meaning of section 229 (Expenses of rural authority) of the Public Health Act 1875 which are chargeable on the parishes or contributory places in respect of which such money is paid.

(3) Nothing in this section contained shall be construed as extending the power of the Corporation to supply water contrary to the provisions of section 42 (For protection of the interests of the corporation of Halifax) of the Wakefield Corporation Waterworks Act 1880.

Interference
with valves
&c.

7. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall

be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe.

A.D. 1923.
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PART III.

RATING PROVISIONS.

8.—(1) This Part of this Act shall come into operation as from the thirty-first day of March nineteen hundred and twenty-four.

Commence-
ment and
interpreta-
tion of this
Part of Act.

(2) In this Part of this Act unless the subject or context otherwise requires :—

“ The parishes ” mean the parishes of Wakefield Sandal and Lupset;

“ The overseers ” mean the overseers of the parishes;

“ The poor rate ” means the poor rates of the parishes;

“ The consolidated rate ” means the poor rate as by this Part of this Act authorised to be levied and collected.

9.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund and general district rate or either of them shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the city or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate.

Expenses to
be paid out
of borough
fund.

(2) The district fund shall be closed and any balance which at the commencement of this Part of this Act is standing to the credit or to the debit of the district

A.D. 1923. — fund or the general district rate respectively shall from and after that date be transferred to the credit or the debit (as the case may be) of the borough fund and any moneys owing to the Corporation in respect of or in connection with the district fund or the general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund.

Contribution
to borough
rate to be
paid out of
poor rate.

10. The contribution of the parishes to the borough rate shall be paid by the overseers out of the poor rate to be made for the parishes and the provisions of section 145 (Collection of borough rate in undivided parish) of the Municipal Corporations Act 1882 shall apply to such contribution.

Poor rate to
be called
“ the con-
solidated
rate.”

11. The poor rate (inclusive of the contributions to the borough fund levied in pursuance of the provisions of this Act) shall be called “ the consolidated rate ” but except as expressly provided by this Act that rate shall continue to be subject to all Acts passed and to be passed relating to the poor rate and to be made assessed levied and recovered as the poor rate.

Differential
consolidated
rate in cer-
tain cases.

12. Notwithstanding anything contained in any Act or Order relating to the Corporation the provisions contained in this section shall have effect in the parish of Wakefield and after the ninth day of November nineteen hundred and twenty-six in the parish of Sandal and after the thirty-first day of March nineteen hundred and thirty-seven in the parish of Lupset with respect to the consolidated rates to be made and levied by the overseers (that is to say) :—

- (1) The owner of any tithes or any tithe commutation rentcharge or the occupier of any land used as arable meadow or pasture ground only or as woodlands allotments orchards market gardens or nursery grounds and the occupier of any land covered with water or used only as a canal or towing-path for the same or as a railway constructed under the powers of any Act of Parliament for public conveyance shall be assessed to the consolidated rate in respect

of such hereditaments on the full rateable value thereof but shall be liable to pay in each year only sixty-two and one half per centum of the rate in the pound payable in respect of hereditaments not within the provisions of this section : A.D. 1923.

(2) Provided that—

(a) During the continuance of the Agricultural Rates Act 1896 the occupier of any agricultural land as defined in that Act shall be liable to pay in each year in respect of such land only forty per centum of the rate in the pound payable in respect of hereditaments not within the provisions of this section ;

(b) During the continuance of the Tithe Rentcharge (Rates) Act 1899 such Act shall have effect within the parish of Wakefield and after the respective dates mentioned in this section in the parishes of Sandal and Lupset as if the following provision were substituted for section 1 thereof (that is to say) :—

“ The owner of tithe rentcharge attached to a benefice shall be liable to pay only sixteen twenty-fifths of the amount payable under the section of the Wakefield Corporation Act 1923 of which the marginal note is ‘ Differential consolidated rate in certain cases ’ in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining nine twenty-fifths thereof shall on demand being made by the collector of the rate on the surveyor of taxes for the city or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of the estate duty grant.”

(3) Nothing in this section shall in any way affect—

(a) the operation of the Agricultural Rates Act 1896 save as in this section is expressly provided or the payment of the sum certified

A.D. 1923.
—

by the Minister of Health as the amount of the share of the annual grant payable under that Act out of the local taxation account to any spending authority or the operation of the Ecclesiastical Tithe Rent-charges (Rates) Acts 1920 and 1922; or

(b) the amount of the contribution for any purposes to be made by the parishes out of the consolidated rate; or

(c) the calculation of the amount in the pound of the part of the consolidated rate levied for the purposes of the relief of the poor and other expenses of the guardians and expenses of the overseers respectively which is required to be stated in the demand note for the poor rate :

- (4) Until the ninth day of November nineteen hundred and twenty-six in the parish of Sandal and until the thirty-first day of March nineteen hundred and thirty-seven in the parish of Lupset the following provisions shall have effect (that is to say) :—

(a) The amount in the pound of the consolidated rate to be levied in any one year in respect of any hereditaments not being any such hereditaments as are referred to in subsection (1) of the section of this Act of which the marginal note is “ Differential consolidated rate in certain cases ” shall be an amount equal to fifty-six per centum of the amount of the consolidated rate levied in the parish of Wakefield ;

(b) If in any year prior to the ninth day of November one thousand nine hundred and twenty-six the part of the consolidated rate to be levied in the parish of Sandal for purposes for which prior to the thirty-first day of March one thousand nine hundred and twenty-four a poor rate would have been levied shall be less than six shillings and sevenpence in the pound the amount in the pound of the consolidated rate to be levied in that year in respect of such hereditaments in that parish as are referred to in

subsection (1) of this section shall be ascer- A.D. 1923.
tained by adding to the part of the con-
solidated rate to be levied for the said pur-
poses so much of the part of the consolidated
rate to be levied in the said parish for
purposes for which prior to the thirty-first
day of March one thousand nine hundred
and twenty-four a general district rate would
have been levied in the said parish as shall
not exceed one-fourth of such part and as
shall not when so added exceed fifty-six per
centum of the consolidated rate for the
parish of Wakefield For the purposes of
this paragraph in each year between the
twenty-fourth day of March one thousand
nine hundred and twenty-four and the ninth
day of November one thousand nine hundred
and twenty-six the Corporation shall furnish
to the London and North Eastern Railway
Company a statement showing as nearly as
may be the amount in the pound of the
parts of the consolidated rate levied in the
parish of Sandal attributable to each of the
purposes in respect of which it is levied ;

(c) During the continuance of the Agricul-
tural Rates Act 1896 the occupier of any agri-
cultural land as defined in that Act shall be
liable to pay in each year in respect of such
land only one-half of the said fifty-six per
centum referred to in this section ;

(d) For the purposes of this section the
said fifty-six per centum of the consolidated
rate in the parish of Wakefield shall be
deemed to be the poor rate portion of the
said consolidated rate.

13.—(1) If any occupier referred to in subsection (1) Appeals.
of the section of this Act of which the marginal note is
“ Differential consolidated rate in certain cases ” claims
that in respect of any rate made or levied he is not
receiving the full benefit to which he is entitled under
the said subsection he may appeal to the next court of
quarter sessions for the city holden not less than twenty-
one days after the demand of the rate and according to

A.D. 1923. — the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal and of the ground thereof be given by the appellant to the Corporation and the overseers.

(2) On appeals under this section the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

Form of
rate &c. to
be pre-
scribed by
Minister of
Health.

14. The consolidated rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the consolidated rate shall be in such form as the Minister of Health may from time to time prescribe.

Amendment
of rates.

15. Section 221 of the Public Health Act 1875 shall apply to the city in respect of the consolidated rate as if the overseers of the parishes were an urban authority and the rate therein mentioned were the consolidated rate.

Application
of section
133 of Lands
Clauses Con-
solidation
Act 1845.

16. For the purposes of section 133 (Until completion of works promoters shall make good any deficiency of land tax and poor's rate caused by lands being taken) of the Lands Clauses Consolidation Act 1845 the poor's rate shall be deemed to be one-half of the amount in the pound of the consolidated rate.

As to re-
covery of
consolidated
rate.

17. No warrant of commitment in respect of non-payment of the consolidated rate shall be issued against any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate.

Service of
demand.

18. Section 267 (Service of notices) of the Public Health Act 1875 shall apply to any demand for the consolidated rate to be served by the overseers.

Overseers
may require
returns.

19.—(1) The overseers of the parishes may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in the parishes (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing

in the form set forth in the Schedule to this Act and containing the particulars therein mentioned or referred to : A.D. 1923.
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Provided that (except for purposes connected with the preparation of and preliminary to a general re-valuation for rating) the powers conferred by this section shall only be exercised—

- (a) upon any change in the occupation or ownership of any hereditament; or
- (b) upon any change in the nature or use of any hereditament whether by way of addition to or adaptation of premises or otherwise such as may affect the value of the hereditament; or
- (c) in the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within fourteen days after receipt of such notice as aforesaid shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers of the parishes shall whenever required by the assessment committee of the Wakefield Poor Law Union produce from time to time to such committee returns or any of them obtained by the overseers under the provisions of this section.

(4) Nothing in this section shall require the London and North Eastern Railway Company to include in any return which they may be required to send to the overseers particulars with respect to their running lines sidings or stations.

PART IV.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

20.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for paying the costs charges and expenses

Power to
borrow.

A.D. 1923.

—

of this Act the sum or sums of money requisite for that purpose and they shall pay off all moneys so borrowed within the period of five years from the passing of this Act and that period is in this Act referred to as "the prescribed period."

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as "the prescribed period") as may be prescribed by the Minister of Health.

(3) In order to secure the repayment of any money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge—

As regards money borrowed for the purpose mentioned in subsection (1) of this section the borough fund and borough rate;

As regards money borrowed with the consent of the Minister of Health such revenue fund or rate as may be prescribed by that Minister.

Application
of financial
provisions of
Acts of 1900
1909 and
1916.

21. The following provisions of the Wakefield Corporation Market Act 1900 the Wakefield Corporation Act 1909 and the Wakefield Corporation Act 1916 shall with the necessary modifications extend and apply to the exercise of the powers of this Act as if the same were re-enacted in this Act namely:—

Wakefield Corporation Market Act 1900—

Section 31 Certain regulations of Public Health Act 1875 as to borrowing not to apply;

Section 32 Mode of raising money;

Section 35 Mode of payment off of money borrowed;

Section 36 Sinking fund Provided that the said section 36 shall be read and have effect as if the words "three
" pounds ten shillings per centum
" per annum or such other rate
" as the Minister of Health may
" approve " were inserted in subsection (1) (b) of that section instead of the words "three per centum per annum";

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Section 37	Protection of lender from inquiry;	A.D. 1923.
Section 38	Corporation not to regard trusts;	—
Section 39	Appointment of receiver;	
Section 43	Application of money borrowed; and	
Section 48	Inquiries by Local Government Board Provided that the said section 48 shall for the purposes of this Act be read and have effect as if the word "five" were substituted for the word "three" in subsection (2) of that section.	

Wakefield Corporation Act 1909—

Section 21 Power to re-borrow.

Wakefield Corporation Act 1916—

Section 56 Evidence of appointments authority
&c.;

Section 57 Powers of Act cumulative;

Section 58 Judges not disqualified.

22. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the borough fund. Expenses of execution of Act.

23. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or out of money to be borrowed under this Act for that purpose. Costs of Act.

The SCHEDULE referred to in the foregoing Act.

1. Name of the street or road &c. in which the property is situate - Number of the house - - - (If not numbered state the name by which known.) Whether occupied with or without stables or other premises as part of the same property - - The quantity of land (if any) and how used - - - -	
2. Full Christian name and surname of occupier - - -	
3. Name and address of owner or immediate lessor - - - (If not known state the name and address of the agent or person to whom the rent is paid.)	
4. Whether the property is occupied— (a) Wholly as a private residence - - - - (a) or (b) Partly as a dwelling-house and partly for trade or business purposes - - - (b) or (c) Solely for trade or business purposes with no person residing on the premises other than a caretaker - - (c) (Number of rooms set apart for the use of the caretaker (if any) and on which floor.) (d) Nature of the business (if any) - (d)	
5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors - - - -	

6. Amount of rent - - - - - or If ground rent only is paid state its amount - - - - -	£ per £ per
7. Whether the property is held under lease or agreement for a period of years - - - - - or By the year quarter month or week - - - - -	
8. (a) Date of commencement of term of lease or agreement - - - - - (b) Term of years for which granted (c) Whether granted for any con- sideration in money in addition to the rent or upon any con- dition as to laying out money in building rebuilding or im- provements - - - - - (If none insert "None.")	(a) (b) (c) Amount paid for lease £
9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair - - - - -	} Annual value £
10. (a) Amount of land tax (if any) - (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)	(a) £ Borne by the (b) £ Borne by the
11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -	
12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property - - - - - (If each undertakes to bear part only of the cost of repairs state the particulars.)	

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DECLARATION.

I declare that the foregoing particulars are in every respect fully and truly stated to the best of my judgment and belief.

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